

This note summarizes the key points of the application, for circulation to Members prior to committee. It is a shorthand only and should be read alongside the full Planning Statement, Noise Impact Assessment and other relevant documents.

The application is retrospective for a mixed residential/commercial use of an existing, already-lawful swimming pool enclosure, to run small, time-limited children's lessons (including a high proportion of SEND learners) with controlled hours. No physical alterations are proposed, and access/parking to remain as existing.

Planning balance

Consideration	Benefit/Harm	Weighting
Principle of development (education/community use; inclusive/SEND provision; community value)	Benefit	Substantial
Human Rights & Equality	Benefit	Substantial
Noise & residential amenity	Harm	Negligible to none
Transport & parking	Harm	Limited
Character of the area (mixed residential/commercial context locally)	Harm	Limited (maintains local character)

Overall, the number and weight of benefits clearly outweigh any limited harms. Permission should therefore be granted. To highlight, a formal balancing exercise akin to the above has not been carried out within the Committee Report.

Key Planning Matters

Principle of development	The proposal regularizes a small-scale, mixed use to accommodate swimming lessons at a private residential property (in a lawful swimming pool enclosure), with no operational development. It provides specialist education/community provision aligned to Barnet policy aims for educational choice and inclusivity and is supported by the NPPF's
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	presumption in favour of sustainable development. Around 50% of users are SEND and application evidence that comprises letters of support, in addition to approximately 100 public comments demonstrates a <u>clear need</u> for a calm, private setting to learn this valuable life skill, which is not feasible in public pools; the Equality Act/Public Sector Equality Duty and Human Rights considerations are material in favour. A letter of support from Mr. John Anthony the Executive Director of Children's Services at Barnet (dated 22/10/2025) corroborates the identified need for the proposal and how swimming is a valuable skill for all children; especially those with sensory processing issues (see Appendix 1). Barnet has specific policies for alternative community/education uses (Policy S3) which supports such facilities where there is no harmful impact on amenity/traffic/character; the statement shows these tests are met.
Noise & residential amenity	A Noise Impact Assessment has been submitted, with a rebuttal letter and amended report addressing further comments made by Environmental Health. This fully demonstrates that the use at its maximum capacity, results in minimal harm to residential amenity and as such, is in accordance with policy. The final Environmental Health position has been included within the November committee report, our Noise consultant has provided his response (dated 11/11/2025 – Appendix 2). This demonstrates that disproportionate emphasis has been placed on neighbor comments,

	above the evidence-based assessment provided by an accredited Noise specialist. The applicant has offered to instruct an independent Noise assessment on behalf of the Council to ensure that the Environmental Health noise objection can be verified by fact-based evidence. One site visit has been carried out by the Case Officer, which occurred outside of the hours of operation. The applicant and local MP requested several times for a second site visit during operation, it was stated that due to caseloads and demands on officer time, this was not possible. Hours are restricted to Mon–Wed 14:00–20:00, Fri 09:30–16:30, Sun 08:30–13:30; no Thurs/Sat. Lessons are 1:1 or 1:2, max 4 children at any one time, activity within the enclosed, insulated building is barely audible externally. The only perceptible sound is occasional comings/goings through the side gate—typical of normal residential use on in a family neighbourhood. As highlighted in public comments, many SEND children in attendance have noise-sensitivity issues, which is a large part of the appeal of the proposal for many parents. This demonstrates the minimal level of noise generation. Several appeal decisions included in planning statement for similar pool-lesson proposals (including schemes with higher intensities than here) found any additional noise to be intermittent and not unduly disruptive, and that well-insulated pool buildings contain internal sound. By comparison, this proposal is lower intensity and within tighter hours.
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	Suitable conditions can secure numbers and hours.
Transport & Parking	The driveway accommodates ~4 cars, with further unrestricted on-street capacity if ever needed. Applicant has taken steps to ensure all spaces on driveway are available, to address any residual concerns regarding on-street capacity. Trip generation is low and staggered: typically, ~18–20 car movements/day (about up to 4 cars/hour, often less where siblings are taught consecutively), this is comparable to routine residential comings/goings and parcel deliveries. NPPF paragraph 116 is not engaged because cumulative impacts on the highway are far from “severe”.
Character of the Area	The immediate area already contains examples of mixed residential/commercial activity in residential plots (e.g. farm shop, solicitors and hair/makeup studio), and the proposal sits comfortably within that context.

APPENDIX 1

The London Borough of Barnet
2 Bristol Avenue
Colindale
NW9 4EW

Contact: John Anthony

Tel:

Email:

Date: 22 October 2025

To whom it may concern,

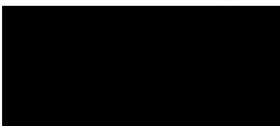
Officers within Children and Family Services can comment on the benefits swimming has on all children, including those with additional needs, rather than the merits of any individual planning application made to the LPA.

Swimming can be a therapeutic experience for children, especially those with sensory processing disorders. Many children with sensory processing challenges struggle with proprioception, the body's ability to sense where it is in space. Swimming enhances their proprioceptive skills by providing consistent resistance, encouraging better balance, coordination, and body awareness.

Swimming is an excellent activity for children because it builds both fine and gross motor skills. More importantly swimming is a great social activity, allowing children to interact with instructors, peers, or family members in a supportive environment. This helps develop social skills, confidence, and self-esteem. Learning to swim is a valuable skill that empowers all children.

I look forward to hearing from you.

Yours sincerely,



John Anthony
Executive Director
Children's Services

Thursday, November 13, 2025 at 14:03:26 Greenwich Mean Time

Subject: Re: EXTERNAL Re: 30 Allandale Avenue
Date: Tuesday, 11 November 2025 at 10:14:46 Greenwich Mean Time
From: [REDACTED]
To: [REDACTED]
Attachments: image002.png

Stephanie

Many thanks for sending these additional comments over. I would like to confirm the following:-

Despite their response, our assessments, calculations and conclusion to the relevant standards remain the same. The council have never mentioned anything about assessing noise levels to the garden areas of the neighbouring properties, despite having ample opportunities to do so, so I would question why they choose to do that at this very late stage considering they are no longer accepting any further rebuttals from ourselves. Requesting additional information and then refusing to review it is unprofessional. They agree with our report regarding the elements surrounding the assessments of Statutory Noise Nuisances, which is encouraging. They also suggest we have underestimated the penalty corrections applied to the BS 4142 assessment. The tonality penalty is applied to cover the mechanical plant. BS 4142 should not strictly be used for noise from people. However, it does provide a suitable method for determining Noise Nuisances and therefore was adopted for the purpose of this assessment. The penalties are not applicable to noise from people.

Finally, they discuss the noise associated with children screaming and shouting and suggest we have not accounted for this. We included an LA_{max} dB assessment within our rebuttal at their request. In addition, the maximum of four children will be having a one to two swimming lesson and not a pool party. Shouting and screaming is extremely unlikely although we have allowed for it within our LA_{max} dB assessment contained within our latest report. These children come to this pool because they may have trouble coping with larger pool environments and need this dedicated teaching environment for their own wellbeing. Unlike a conventional public swimming pool, the LA_{max} dB levels will be significantly lower in this environment.

Kind Regards

Brian Scrivener MIOA
Noise Consultant
Impact Acoustics Ltd

[REDACTED]